

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
IVAN LOPEZ,

Plaintiff,

- against -

THE CITY OF NEW YORK; OFFICER ACEVEDO of the
43rd Precinct; OFFICER APONTE of the 43rd Precinct;
NYPD OFFICERS "JOHN DOE 1-2",
Individually and in their official capacity, (the names
John Doe being fictitious, as the true name and number
are presently unknown),Defendants.
-----X

Index No.:

SUMMONSPlaintiff designates Bronx
County as the place of trial.The basis of venue is:
The county in which the action
arose per CPLR 504(3)The cause of action arose in
Bronx County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 3, 2019

Yours etc.

Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff

IVAN LOPEZ

233 Broadway, Suite 2348

New York, NY 10279

212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

OFFICER ACEVEDO
43rd Precinct, New York City Police Department
900 Fteley Ave
Bronx, NY 10473

OFFICER APONTE
43rd Precinct, New York City Police Department
900 Fteley Ave
Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
IVAN LOPEZ,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK; OFFICER ACEVEDO of the
43rd Precinct; OFFICER APONTE of the 43rd Precinct;
NYPD OFFICERS "JOHN DOE 1-2",
Individually and in their official capacity, (the names
John Doe being fictitious, as the true name and number
are presently unknown),

Defendants.

-----X

Plaintiff, by his attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on March 3, 2018, and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. That within the time prescribed by law, a Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
3. That this action is commenced within a year and 90 days from the accrual of the claims alleged by plaintiff.

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Defendants ACEVEDO and JOHN DOES 1-2.

5. That on March 3, 2018, the Plaintiff **IVAN LOPEZ** had not committed any crime.

6. That at approximately 7 o'clock a.m. on March 3, 2018, a team of officers including Defendants ACEVEDO and entered 1171 Morrison Avenue, Apartment 1E, Bronx, New York.

7. This entry was without consent of the occupants, without exigent circumstances, and without a warrant.

8. At this place and time, Plaintiff **IVAN LOPEZ** was arrested and placed in handcuffs.

9. Despite offering no resistance, Plaintiff was assaulted and handcuffed so tightly as to induce severe pain to his right wrist.

10. Defendants alleged that plaintiff had violated New York Penal Law §120.00(1)—Assault in the 3rd Degree, and §240.26(1)—Harassment in the 2nd Degree, and charged him under Docket No. 2018BX007699.

11. These allegations against claimant were false and were fabricated in an attempt to intimidate and falsely convict him.

12. Plaintiff was taken to the local precinct, and then to Bronx Central Booking, finger printed, and photographed.

13. Medical staff at Central Booking determined that Plaintiff needed medical attention, and had him transported to Jacobi Medical Center, accompanied by defendant OFFICER APONTE.

14. At Jacobi, plaintiff was placed on a hospital bed and handcuffed to the railing by his right hand.

15. Plaintiff then complained to defendant OFFICER APONTE that the handcuff was overly tight on his wrist.
16. OFFICER APONTE inserted the key into the handcuff and broke it off, rendering the handcuff inoperable and still clamped down on plaintiff's right wrist.
17. This caused significant pain to plaintiff.
18. Plaintiff remained with the broken handcuff for approximately 40 minutes until the Emergency Services Unit could arrive and cut the handcuff open.
19. Plaintiff was thereafter taken back to Bronx Central Booking and was arraigned before being released on his own recognizance.
20. The charges under docket number 2018BX007699 were dismissed on May 11, 2018.
21. Plaintiff was falsely imprisoned and maliciously prosecuted by and at the direction of OFFICER ACEVEDO as well as other agents, servants and/or employees of the City of New York, including but not limited to, upon information and belief, agents employed by the New York City Police Department and officers affiliated with the 43rd Precinct of the City of New York.
22. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.
23. No acts on the part of the Plaintiff **IVAN LOPEZ**, contributed to the occurrence alleged herein in any manner whatsoever.

24. As a result of the intentional, reckless and negligent acts of the defendants, plaintiff suffered loss of liberty of approximately 24 hours.
25. Plaintiff sustained injuries to his right wrist. Plaintiff further suffered severe anxiety, humiliation, and embarrassment, and apprehension, fear and distrust of the police.
26. Plaintiff further suffered emotional and psychological trauma, violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.
27. That by reason of the foregoing, Plaintiff **IVAN LOPEZ** has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER NEW YORK STATE LAW AND 42 U.S.C. §1983

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
29. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
30. As a result of the aforesaid conduct by defendants ACEVEDO and JOHN DOES 1-2, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
31. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights,

emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

32. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:
MALICIOUS PROSECUTION UNDER STATE and FEDERAL LAW

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. At the aforementioned times and locations, was detained and held under the imprisonment and control of the defendants and other unidentified officers of the NYPD present on the scene without probable cause.

29. Defendants commenced the criminal action against plaintiff in the absence of any probable cause that a crime had been committed by Plaintiff.

30. Defendants commenced this criminal action out of malice.

31. The criminal action against plaintiff has terminated in his favor.

32. At all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

33. Plaintiff was conscious of the confinement.

34. As a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

35. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.
36. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.
37. The City of New York remains liable for the conduct of its employees and agents under the doctrine of *respondeat superior*.

THIRD CLAIM FOR RELIEF:
NEGLIGENCE

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
34. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.
35. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING of ACEVEDO, and JOHN DOES 1-2

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

38. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FIFTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER FEDERAL LAW

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. In detaining plaintiff, defendants used force.

41. The force used was unreasonable and excessive.

42. Plaintiff was harmed as a result of the use of this force.

43. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

44. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

45. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated:

New York, NY
June 3, 2019

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff(s)

IVAN LOPEZ

233 Broadway, Suite 2348

New York, NY 10013

212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **IVAN LOPEZ**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
June 3, 2019

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff